

The Civil Defence Regulations, 1968

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Union of India - Act

The Civil Defence Regulations, 1968

UNION OF INDIA

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The Civil Defence Regulations, 1968

Rule THE-CIVIL-DEFENCE-REGULATIONS-1968 of 1968

Published on 10 July 1968

Commenced on 10 July 1968

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The Civil Defence Regulations, 1968

Publication vide G.S.R. 1278, dated 10.7.1968.

375.

In exercise of the powers conferred by section 9 of the Civil Defence Act, 1968 (27 of 1968

), the Central Government hereby makes the following regulations, namely:-

1.

Short title .-These regulations may be called The Civil Defence Regulations, 1968.

2.

Definitions .-(a) "Controller" means the person appointed to command a Civil Defence Corps under sub-section (1) of section 4 of the Civil Defence Act, 1968 (27 of 1968);

(b)

"competent authority" means the State Government or any person appointed by the State Government to exercise the powers of a competent authority under any provision of these regulations;

(c)

"Form" means a Form appended to these regulations;

(d)

"Corps" means the Civil Defence Corps of a town or district or any area.

3.

Eligibility .-(1) A person who intends to apply for appointment to a Civil Defence Corps must fulfil the following conditions:-

(a)

he shall be a citizen of India, or a subject of Sikkim or of Bhutan or of Nepal;

(b)

he shall have completed the age of 18 years provided that this age limit may be relaxed in the discretion of the competent authority unto a maximum of 3 years for any branch or category of the Corps;

(c)

he shall have passed at least the primary standard, that is to say, the fourth class; and this condition may be relaxed by the Controller in his discretion.

(2)

Both men and women shall be eligible for appointment to the Corps.

(3)

A person shall not be entitled to be appointed to the Corps unless he is found to be physically fit and mentally alert.

(4)

Any service in the National Volunteer Force and in the Armed Forces of the Union shall be a special qualification.

4.

Manner of application .-(1) Every person eligible for appointment under regulation 3 shall be required to apply in Form "A" and also present himself for interview before the competent authority.

(2)

Every candidate shall be required to produce a certificate from his employer agreeing to spare his service for training and duty, when so required.

(3)

The Controller may for advising him in the selection of candidates constitute a Selection Committee which shall consist of such number of members and such persons as the Controller may determine and appoint.

(4)

All candidates shall be required to undergo training and passed examinations prescribed by the competent authority.

5.

Enrolment .-(1) A candidate who has been accepted for appointment to the Corps shall be formally enrolled in such manner as the Controller may, by order, determine and at the time of enrolment shall make an oath or affirmation according to Form "B" before such officer as the Controller may, by order, appoint.

(2)

Members of the following forces or services are not ordinarily eligible for enrolment in a Civil Defence Corps:-

(i)

Armed Forces of the Union;

(ii)

Police Force;

(iii)

Fire Services;

(iv)

Territorial Army or Auxiliary Forces of any of the Defence Services;

(v)

Civilian personnel employed in connection with the Armed Forces of the Union.

(3)

This regulation shall not apply to Government servants who are specifically deputed for whole-time or part-time Civil Defence duties by the Heads of organisation or services concerned.

[5-A. Tenure

.-A candidate shall be enrolled as a member of the Corps, under regulations 5 initially for a tenure of three years which may be extended more than once each time by a further period of three years.]

6.

Organisation .-(1) The Controller may divide Corps into such number of sections consisting of such number of persons as he may consider necessary and appropriate and appoint a person (hereinafter called the Officer-in-Charge) to command each such section.

(2)

The duties of the Officer-in-Charge shall be such as the Controller may by order prescribe from time to time.

(3)

The Controller may appoint a Deputy to assist any Officer-in-Charge.

(4)

The Controller shall, subject to such general or special orders as may be issued by the competent authority in this behalf from time to time, appoint all other staff required to man the service and may delegate such powers of appointment to any Officer-in-Charge.

7.

[Membership Certificate

.- (1) Every person appointed to be a member of the Corps shall be issued a certificate of membership in Form C.

(2)

A person losing the certificate issued to him under sub-regulation (1), shall report its loss forthwith to his immediate superior officer, who shall make necessary enquiries, and shall after satisfying himself, and arrange the issue of a duplicate certificate of the same.

(3)

The cost of the aforesaid duplicate certificate as determined by the issuing authority, shall be borne by the person to whom the certificate of membership was issued under sub-regulation (1).]

8.

Conditions of service .-(1) The members of the Corps shall ordinarily serve in a voluntary and honorary capacity:

Provided that the State Government may, by order, authorise payment of duty allowance (at such scales as may be prescribed by it from time to time in consultation with the Central Government) to a member of the Corps when called on duty.

(2)

Notwithstanding anything contained in clause (1), the Central Government may declare any appointment or class of appointments as paid appointments. A person appointed on the basis of payment shall be entitled to such conditions of service as regards pay, leave and other benefits as the State Government may, by order, prescribe.

9.

Duty .-Members of the Corps may be called on duty:-

(i)

for training;

(ii)

for practice or exercises;

(iii)

to perform the duties assigned to them by order under these regulations or under any other law for the time being in force, for the protection of persons and property against hostile attack.

10.

Discipline .-(1) While undergoing training or on duty, no member of the Corps shall absent himself from any lecture, practice or exercise or any other training course, except with the specific permission of the Officer-in-Charge, or other superior officer.

(2)

Every member of the Corps shall conform to the following regulations:-

(i)
He shall notify the Controller through the Officer-in-Charge any change in his permanent address or place of employment.

(ii)
He shall not communicate with the press or any political organisation or body in regard to any matter connected with his duties under the Civil Defence Corps except with the permission of the Controller.

(iii)
He shall treat as strictly confidential all reports (or copies thereof) coming within his cognisance or knowledge, in the course of his employment as a member of the Corps.

11.
Uniform and accoutrement .-(1) A member of the Corps shall, when on duty, wear such uniform and badges of rank or insignia and carry such equipment as may be prescribed by the Controller. The cost of such uniform or insignia and equipment will be borne by the State Government. In addition each member who is issued a uniform shall be granted a washing allowance at such rate as may be prescribed by the State Government in consultation with the Central Government from time to time.

(2)
On termination of his services, he shall immediately return to the Officer-in-Charge his membership certificate and the uniform and equipment supplied to him and obtain a receipt for the articles returned. If a member fails to return any item issued to him, the cost thereof shall be assessed by the Controller and recovered from him.

12.
Compensation .-If a member of the Corps suffers any damage to his person or property, while on duty, he shall be paid such compensation as may be determined by the competent authority, provided that such damage is not caused by his own negligence or wilful act or omission in contravention of any of the provisions of the Civil Defence Act, 1968 (27 of 1968

) or rules made thereunder, or orders or directions issued by his superior officer.

13.
Service records .-A record of service in respect of every member of the Corps shall be maintained in Form "D".

14.
Resignation .-Any member of the Corps who desires to leave the Corps shall submit his resignation in writing to his immediate superior officer giving at least two weeks notice.

15.
Recovery of loss .-If a member of the Corps fails to pay the cost of the uniform assessed by the Controller, or make good any pecuniary loss caused to Government by misuse or negligence , the cost of the uniform or the amount of the loss shall be recoverable from him.

16.
Powers of competent authority as regards preventing the contravention of regulations, etc .-The competent authority may take, or cause to be taken, such steps and use, or cause to be used, such force as may, in the opinion of such authority, be reasonably necessary for preventing the contravention of, or securing the observance of, these regulations or any order issued thereunder.

APPENDIX

FORM A

Application For Enrolment As A Member Of The Civil Defence Services

[See Regulation 4(1)]

1. Name in full(in Block Letters)
2. Father's/husband's name
3. Date of Birth
4. Nationality
5. Permanent address
6. Occupation and present address
7. Name and address of present employer

8. Educational Qualifications

9. Languages known(to read/write/speak)

10. Are you a member of the following?

(i)

Defence Forces (Army/Navy/Air Force) or any of their reserves;

(ii)

Territorial Army or any other auxiliary force of Defence Services;

(iii)

Civilian Cadre of Armed Forces of the Union, subject to Naval, Army or Air Force law, other than "Casual Employees";

(iv)

Police Service;

(v)

Fire Service;

11. Are you an ex-service person; if so, give particulars.

12. Do you belong to the national Volunteer Force; if so, give particulars.

13. Have you any previous experience in Civil Defence Corps? If so, give particulars, including date.

14. Have you any preference for any particular section of Civil Defence Corps? If so, state the section.

15. Have you any special qualifications for enrolment in the section chosen by you? If so, give detail.

16. In case of preference for service in Mobile Columns or Ambulance trains, are you prepared to serve anywhere in India, should an emergency arise?

17.

For how many hours and on what days of the week will you be available for Civil Defence Duty(for part-time volunteers only)

18.

Do you have any conveyance(bicycle, motor car, motor cycle, etc.)?

19.

Are you suffering from any communicable disease; if so, give particulars.

20.

Did you have small pox? If so, when

21.

Have you been vaccinated? If so, when

22.

Have you been inoculated for cholera/typhoid/T.B., etc? if so, when.

23.

Do you know first Aid/Motor Driving?

24.

Signature of applicant.

Declaration

1. I have read the "Civil Defence Regulations, 1968"

2. As far as I know, I am physically fit to render efficient service as a member of the Corps.

3. If any application is accepted, I am prepared to service as a whole-time/part-time member of the Corps, ie, to undergo the appropriate Training and, in the event of any emergency occurring whilst I remain a member of the Corps, to carry out my obligations as a member thereof.

4. I undertake as-

(i)

to carry out my duties in the Civil Defence Corps in accordance with the instructions and orders issued by the authorities concerned;

(ii)

to return, when I cease to be a member of the Corps, any articles of uniform, badge or other personal equipment issued to me, and

(iii)

to abide by the regulations of the Corps.

.....

Signature of applicant

Place :

Date :

This form duly completed should be submitted to :

Name and address of Enrolling Authority

FOR OFFICIAL USE

Recommendations of the Head of Corps/Staff officer concerned

Admitted to (Corps, etc) and allotted to (post No. etc.).....

Signature.....

Signature.....

Designation.....

Designation.....

Date.....

Date.....

FORM B

Form Of Oath

(See Regulation 5)

I,.....** son/daughter/wife of.....swear/Solemnly affirm that I will be faithful and bear, true allegiance to India and to the Constitution of India as by law established, and that I will loyally carry out the duties entrusted to me(So help me God)

[FORM C]

[Substituted by G.S.R. 520, dated 6-4-1971 (w.e.f. 7-4-1971).]

No.....

(See regulation 7)

Membership Certificate

Government of.....(name of States)

Civil Defence Corps

1.

Name in full

2.

Nationality

3.

Date of birth

4.

Father's/husband's name

5.

Identification marks

6.

Permanent address

7.

Name of Civil Defence Corps in which employed

8.

Assignment

Photograph

9.

Name and address of next of kin

10.

Signature/thumb impression of the person

Date of issue

Office Stamp of Issuing Authority

.....

Signature and designation of Issuing Authority]

FORM D

(See regulation 13)

Record Of Service

Government of.....(name of the State)

1. Name
2. Father's/husband's name
3. Nationality
4. Date of birth/age
5. Identification marks
6. Permanent address
7. Particulars of post held under Government, etc.
8. Name and address of employer
9. Name and address of next of kin
10. Signature/thumb-impression

.....

Signature of Civil Defence Controller or of any officer on his behalf

Particular of C.D.Corps/Training etc.

Name of Service

Assignment

Identity Card No.

From

To

Scale

Pay

Allowances

Total

Reason for termination of assignment e.g., transfer etc.

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 10

Leave taken

Personal equipment uniform and accoutrement

Signature of C.D. workers

Signature of head of C.D. Corps

Remarks

Nature of leave

Period

From

To

Items issued and date of issue

Items returned and date of return

11
12
13
14
15
16
17
18

Items 1 to 10 at the top should be filled in at the time of enrolment.

N.B. - (a) A record in the proforma should be maintained in respect of all C.D. personnel.

(b)

Particulars in col. (1) to (18) should be filled in as and when they occur, and attested.

(c)

This record should be kept in the custody of responsible officer, not below the rank of Head of Corps.

Related AI tags, queries and research notes

Translation